RESOLUTION OF THE BOARD OF TRUSTEES OF THE FRISCO INDEPENDENT SCHOOL DISTRICT APPROVING THE PARTICIPATION AGREEMENT BETWEEN FRISCO INDEPENDENT SCHOOL DISTRICT AND SOUTHEAST KANSAS ESC (GREENBUSH)

WHEREAS, the Texas Government Code §§791.001 et seq. (the "Act") authorize units of local government to enter into interlocal agreements, including similar agencies of another state; and

WHEREAS, the Frisco Independent School District (the "District") and Southeast Kansas ESC ("Greenbush"), parties (the "Parties") to the Participation Agreement, are local government units under the Act; and

WHEREAS, the District desires to reach an agreement with Greenbush for the purpose of allowing the District to access eligible Greenbush cooperative contracts; and

WHEREAS, the District wishes to enter into that Participation Agreement for this purpose; and

WHEREAS, the Board of Trustees for the District has determined it is in the best interest of the students and citizens of the District to enter into this Participation Agreement and to adopt this resolution.

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF TRUSTEES OF THE FRISCO INDEPENDENT SCHOOL DISTRICT THAT:

Section 1: The above and foregoing recitals are true and correct and are incorporated into the body of this Resolution.

Section 2: That certain Participation Agreement is hereby accepted and approved in the form attached to this Resolution and incorporated herein by reference.

Section 3: The Board does hereby delegate authority and authorize the Superintendent of Schools to execute and cause to be delivered the Participation Agreement on behalf of the District.

Section 4: It is officially found and determined that the meeting at which this Resolution was considered was open to the public and public notice of the time, place and purposes of the meeting was given and posted as required by Chapter 551 of the Texas Government Code, as amended.

[Signature Page Attached]

PASSED, APPROVED AND RESOLVED by the Board of Trustees of the Frisco Independent School District, Frisco, Texas, on _____, at a duly constituted meeting for which notice was timely given.

Keith Maddox, President
Board of Trustees
Frisco Independent School District

ATTEST:

Dynette Davis, Secretary
Board of Trustees
Frisco Independent School District

APPROVED AS TO FORM ONLY:

Esther Kolni,
General Counsel
Frisco Independent School District

THE PURCHASING COOPERATIVE AT
GREENBUSH

PARTICIPATION AGREEMENT
INTERLOCAL/COOPERATIVE PURCHASING
Southeast Kansas Education Service Center (SEKESC) (Greenbush)

This Participation Agreement ("Agreement") is made and entered into on the date indicated below by and between Greenbush, and the undersigned cooperative participant.

Greenbush – Southeast Kansas Education Service Center ("SEKESC" or "Greenbush") is a Kansas public agency organized as an interlocal entity and classified as Interlocal No. 609.

Greenbush administers a cooperative purchasing program through which eligible public agencies and other qualifying entities may utilize contracts awarded through Greenbush 's competitive solicitation process, subject to applicable law and the terms of the underlying solicitation and contract.

The purpose of this Agreement is to establish the terms under which the cooperative participant may access eligible Greenbush cooperative contracts and to support efficient cooperative purchasing consistent with each party's applicable procurement requirements.

Cooperative Guidelines

Governing Documents: This Agreement and all purchases or transactions made under a Greenbush cooperative contract are subject to the applicable solicitation, resulting contract, instructions, amendments, and other governing procurement documents.

No Obligation: This Agreement does not obligate the Participant to utilize any Greenbush cooperative contract, make any purchase, or participate in any other program or service offered by Greenbush.

Participant Responsibility. It is the sole responsibility of the Participant to determine whether use of a Greenbush cooperative contract is permitted under and complies with its applicable state and local laws, regulations, policies, procurement requirements, and other governing authority. Each party agrees to maintain accountability for public funds disbursed in connection with this Agreement as required by its respective applicable laws. Each party is responsible for its own acts and the results thereof, to the extent authorized by law, and is not responsible for the acts of the other party or the results thereof.

Ordering. Purchase orders shall be issued directly to the applicable awarded vendor or other authorized contracting party in accordance with the terms and conditions of the

applicable solicitation and resulting contract. Each purchase order should reference the applicable Greenbush contract identification number.

Payment. The Participant shall make payment directly to the applicable vendor for goods, materials, services, or other solutions received in accordance with the applicable contract. The Participant is not required to pay Greenbush a membership fee or other fee for access to or use of Greenbush cooperative contracts.

Vendor Fees. Greenbush may require awarded vendors to pay administrative or other contractually established fees to Greenbush in connection with purchases made under Greenbush cooperative contracts. Such fees are the responsibility of the vendor and shall not be separately payable by the Participant to Greenbush.

Term and Termination. This Agreement becomes effective upon execution by both parties and shall remain in effect until terminated by either party upon thirty (30) days' written notice.

Entire Agreement; Amendments. This Agreement constitutes the understanding between Greenbush and the Participant regarding participation in Greenbush's cooperative purchasing program. Any amendment to this Agreement must be in writing and executed by authorized representatives of both parties.

COOPERATIVE PARTICIPANT INFORMATION

BY

Authorized Signature			
Printed Name	Esther Kolni	**Title**	General Counsel
Date:			

AGENCY

Agency Name	Frisco Independent School District		
Address	Frisco ISD, 5515 Ohio Drive, Frisco, TX 75035		
City, State, Zip			
Contact Person (Name)	Susan Patterson	**Title**	Purchasing Director
Contact Person (Email)	pattersons@friscoisd.org		
Contact Person (Phone)	469-633-6381		

THE PURCHASING COOPERATIVE AT
GREENBUSH

ORGANIZATION TYPE

- [X] **K-12 Public School**
- [ ] **K-12 Private School**
- [ ] **College or University**
- [ ] **City/County/State Government**
- [ ] **Parks and Recreation Department**
- [ ] **Public Library**
- [ ] **Not-for-Profit**

Southeast Kansas Education Service Center (SEKESC) (Greenbush)
Tina Smith, Chief Business Solutions Officer
Date:
Signature: